IN THE SUPREME COURT OF INDIA

HUMAN RIGHTS & CUSTODIAL JUSTICE JURISDICTION

(Division Bench (2 Judges))

CASE NUMBER: Writ Petition (Crl.) No. 592 of 1987 **CNR: SCIN010005921987**

REPORTABLE CITATION: (1997) 1 SCC 416 DATE: December 18, 1996

CORAM: Hon'ble Kuldip Singh & Dr. A.S. Anand, JJ.

D.K. Basu v. State of West Bengal

D.K. Basu, Ashok K. Johri ...PETITIONER(S)

VERSUS

State of West Bengal & State of U.P. ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Constitution of India, Code of Criminal Procedure, 1973 | Sections: Article 21, Article 22, Section 50

Framed mandatory 11-point procedural requirements to be followed in all cases of arrest or detention to eradicate custodial violence and uphold Articles 21 and 22. Police must prepare an arrest memo, inform a family member of the arrest, conduct medical examinations every 48 hours, and allow the arrested person to consult an advocate.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Custodial violence, including torture and death in the lock-up, strikes a blow at the rule of law. The requirements of preparing an arrest memo, informing a relative or friend, conducting medical examination by a trained doctor, and entering details in the police station diary are mandatory and failure to comply entails contempt of court and departmental action.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Eleven Mandatory Arrest Guidelines Codified (Outcome: Directions Issued)

Precedential Authority: Good Law (Binding Precedent)

LEXGUARD CRYPTOGRAPHIC REGISTERED SEAL • STATUTORY JUDICIAL ARCHIVE

`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`